

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANDREW DEAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. DUSTIN DIAZ,
Shield #18839 P.O. MARK WHIRL, Shield #9207 in
their official and individual capacity as members of the
New York City Police Department, and JOHN and
JANE DOES, said names being fictitious and intended
to represent individual officers, members, agents,
servants and/or employees of the New York City
Police Department, in their individual and
official capacity,

Defendants.

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer, or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
October 4, 2024

Yours etc.,

THE COCHRAN FIRM
Attorneys for Plaintiffs



DEREK S. SELLS
55 Broadway, 23rd Floor
New York, NY 10006
(212) 553-9215

TO:
THE CITY OF NEW YORK
100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, New York, NY 10007

P.O. DUSTIN DIAZ
1000 Sutter Avenue, Brooklyn, NY 11208

P.O. MARK WHIRL
1000 Sutter Avenue, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANDREW DEAN,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. DUSTIN DIAZ, Shield #18839 P.O. MARK WHIRL, Shield #9207 in their official and individual capacity as members of the New York City Police Department, and JOHN and JANE DOES, said names being fictitious and intended to represent individual officers, members, agents, servants and/or employees of the New York City Police Department, in their individual and official capacity,

**PLAINTIFF DEMANDS A
JURY TRIAL**

Defendants.
-----X

Plaintiff ANDREW DEAN, by his attorneys, THE COCHRAN FIRM, as and for a
Verified Complaint herein, respectfully sets forth and alleges:

NATURE OF THE CLAIMS

1. This is a civil action for compensatory, injunctive, punitive and exemplary damages for civil rights violations, malicious prosecution and personal injuries.
2. This action is to redress the deprivation under the color of statute, ordinances, regulation, custom or usage of a right, privilege and immunity secured to the Plaintiff by the United States Constitution, particularly, the 4th, 5th and 14th Amendments, 42 U.S.C. Sections 1983 and 1988, Monell and the laws and statutes of New York State.
3. This action arises out of Defendants' physical assault and malicious prosecution of the Plaintiff as a result of Defendants unlawful arrest of him on May 8, 2024, for bogus criminal charges meant to shield the Defendant officers illegal conduct. Plaintiff's charges were dismissed on August 12, 2024, establishing that he won his criminal case on the merits.

4. Defendants' conduct was deliberately indifferent to the Plaintiff's constitutional rights, malicious, wanton and in reckless disregard of the Plaintiff's legal rights. It has caused and continues to cause the Plaintiff to suffer substantial economic and non-economic harm, physical injuries, severe mental anguish and emotional distress.

JURISDICTION & VENUE

5. This Court has jurisdiction over this matter because this case arises out of an incident that occurred in Kings County.

6. Venue is proper in this district pursuant to CPLR §504 because the conduct leading to the cause of action occurred in Kings County.

PARTIES

7. Plaintiff ANDREW DEAN was unlawfully arrested and brutally assaulted in Kings County and forced to defend against the criminal charges brought against him in Criminal Court of the City of New York, Kings County.

8. Defendant CITY OF NEW YORK is a municipal corporation duly existing under and by virtue of the laws of the State of New York and maintains its principal place of business at 100 Church Street, New York, New York 10007. As part of its function, the City of New York operates the NEW YORK CITY POLICE DEPARTMENT with an address at 1 Police Plaza, New York, New York (hereinafter "NYPD"). In this capacity, its employees who were involved in the incident are named in this Complaint.

9. At all relevant times, P.O. DUSTIN DIAZ, Shield #18839 was a police officer of the NYPD and a representative of the City of New York, and he directly participated in the unlawful activity that is the subject of the Complaint.

10. At all relevant times, P.O. MARK WHIRL Shield #9207, was a police officer of the NYPD and a representative of the City of New York, and he directly participated in the unlawful activity that is the subject of the Complaint.

11. At all relevant times, Defendants “JOHN and JANE DOES” were police officers, supervisory officials and/or employees of the NYPD and/or representatives of the City of New York, and they directly participated in the unlawful activity that is the subject of this Complaint.

PROCEDURAL REQUIREMENTS

12. Within the requisite time period, a Notice of Claim was served on the City of New York on June 3, 2024, and New York City Police Department on June 4, 2024.

13. Oral Examination of the Plaintiff ANDREW DEAN was held on September 3, 2024 in compliance with Section 50-H of the General Municipal Law.

14. All conditions and requirements precedent to the commencement of this action have been met.

FACTUAL ALLEGATIONS

15. On or about May 12, 2024, the Plaintiff was physically assaulted, wrongfully arrested and prosecuted for purportedly violating Vehicle Traffic Law Sections 1111 (D)(1), 1128 (A), 1172 (A), 1225-A, 402(1)(B), PL 120.20, PL 195.05 (01), PL 205.30, PL 110/120.00, (1), 1212 and 240.26 (1) by Police Officers DUSTIN Diaz, Shield #18839 and Mark Whirl, Shield #9207 of the 75th Precinct. At and prior to the unlawful arrest, Plaintiff was legally operating his vehicle along the streets of Kings County intending to stop at his home. As he pulled up in front of his home, he observed officers approaching his car with guns drawn. He was afraid for his safety and honked his horn to alert his family. After his father emerged from the house, he felt safe to open the car door and when he did, officers dragged him out of his car

and physically assaulted him causing injuries to his body and face, followed by his arrest. Plaintiff was tasered during this process despite not resisting arrest. He was also struck about the body and head after he was detained. All criminal charges were subsequently dismissed on August 12, 2024.

16. Defendants P.O. DUSTIN DIAZ and P.O. MARK WHIRL, in order to cover up the lack of probable cause, provided conflicting accounts of what led to their decision to arrest the Plaintiff. Based upon these falsehoods, and despite video recordings of the incident, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES maliciously prosecuted the Plaintiff.

17. The video recordings clearly establishing the wrongful and illegal conduct of the Defendant Police Officers, DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES. These videos so undermined the account given by the arresting officers and John and Jane Doe's, that the District Attorney of Kings County dismissed all the criminal charges on August 12, 2024.

Federal Claims

FIRST CAUSE OF ACTION

Wrongful Arrest under 42 U.S.C. §1983

18. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 17, inclusive, as if fully set forth herein.

19. The Defendants Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES, without just or probable cause, arrested Plaintiff in front of his home in violation of the 4th Amendment to the United States Constitution and 42 U.S.C. 1983.

20. Defendants DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES by were acting under color of law when they arrested Plaintiff in violation of the 4th Amendment.

As a result of the Defendants' actions, Plaintiff suffered physical injuries, economic harm, mental anguish and emotional upset, some of which are permanent in nature and duration.

21. The resulting injuries sustained by Plaintiff were caused solely by the Defendants, in violation of Plaintiff's Constitutional rights, and without any cause, provocation, or negligence on the part of Plaintiff contributing thereto.

22. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

SECOND CAUSE OF ACTION

Excessive Force under 42 U.S.C. § 1983

23. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 22, inclusive, as if fully set forth herein.

24. The individually named Defendant officers arrested Plaintiff ANDREW DEAN without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

25. The Defendant officers caused Plaintiff ANDREW DEAN to be falsely arrested and unlawfully imprisoned.

26. The Defendants Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES, assaulted Plaintiff by striking him in his head, pounding his head and body into the street, tasing him with a taser all while he was face down, with multiple officers on his back and his arms behind his back and restrained by police. Plaintiff was not resisting arrest at any time during his encounter with police. The force used was therefore unreasonable, excessive and

unjustified in violation of the 4th, 5th and 14th Amendments to the United States Constitution and 42 U.S.C. 1983.

27. Defendants Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES by were acting under color of law when they used unreasonable and excessive force against Plaintiff in violation of his 4th, 5th and 14th Amendment rights.

28. The use of force was unjustified and unreasonable.

29. As a result of the Defendants' actions, Plaintiff suffered physical injuries, economic harm, mental anguish and emotional upset, some of which are permanent in nature and duration.

30. The resulting injuries sustained by Plaintiff were caused solely by the Defendants, in violation of Plaintiff's Constitutional rights, and without any cause, provocation, or negligence on the part of Plaintiff contributing thereto.

31. Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

THIRD CAUSE OF ACTION

Failure to Intervene under 42 U.S.C. § 1983

32. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 31, inclusive, as if fully set forth herein.

33. Defendants had an affirmative duty to intervene on behalf of Plaintiff ANDREW DEAN, whose constitutional rights were being violated in their presence by other officers.

34. The Defendants failed to intervene to prevent the unlawful conduct described herein.

35. As a result of the foregoing, Plaintiff ANDREW DEAN was subjected to excessive force, arrested, he was denied his right to a fair trial, and he was put in fear of his safety.

36. The Defendants Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JAE DOES, witnessed the unconstitutional assault of Plaintiff by other officers, including striking him in his head, pounding his head and body into the street, tasing him with a taser all while he was face down, with multiple officers on his back and his arms behind his back and restrained by police. Despite the fact that the Plaintiff was not resisting arrest at any time during his encounter with police, these defendants failed to intervene and stop the unconstitutional conduct. The force used was unreasonable, excessive and unjustified in violation of the 4th, 5th and 14th Amendments to the United States Constitution and 42 U.S.C. 1983.

37. Defendants Police Officers DUSTIN DIAZ, MARK WHIRL and JOHN and JANE DOES were acting under color of law when they failed to intervene and prevent the unreasonable and excessive force against Plaintiff in violation of his 4th, 5th and 14th Amendment rights.

38. Defendants' actions caused Plaintiff to suffer physical injuries, economic harm, mental anguish and emotional upset, some of which are permanent in nature and duration.

39. The resulting injuries sustained by Plaintiff were caused solely by the Defendants, in violation of Plaintiff's Constitutional rights, and without any cause, provocation, or negligence on the part of Plaintiff contributing thereto.

40. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable

attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983

41. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 40, inclusive, as if fully set forth herein.

42. The individually named Defendant officers arrested Plaintiff ANDREW DEAN without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

43. The Defendant officers caused Plaintiff ANDREW DEAN to be falsely arrested and unlawfully imprisoned.

44. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION

Malicious Prosecution under 42 U.S.C. § 1983

45. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 44, inclusive, as if fully set forth herein.

46. The individually named Defendants initiated, commenced and continued a malicious prosecution against Plaintiff ANDREW DEAN.

47. The Defendants caused Plaintiff ANDREW DEAN to be prosecuted without any probable cause until the charges were dismissed on or about August 12, 2024.

48. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive

damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
Violation of Right to Fair Trial under 42 U.S.C. § 1983

49. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 48, inclusive, as if fully set forth herein.

50. The individually named Defendants created false evidence against Plaintiff ANDREW DEAN.

51. The Defendants forwarded this false evidence to the Kings County District Attorney's Office and to Kings County Criminal Court to be used against Plaintiff ANDREW DEAN in legal proceedings.

52. As a result of Defendants' creation and use of false evidence, Plaintiff ANDREW DEAN suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

53. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
Supervisory Liability under 42 U.S.C. § 1983

54. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 53, inclusive, as if fully set forth herein.

55. The supervisory Defendants personally caused Plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise

and train their subordinate employees.

56. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A EIGHTH CAUSE OF ACTION
Municipal Liability under 42 U.S.C. § 1983 against Defendant City of New York

57. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 56, inclusive, as if fully set forth herein.

58. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, using excessive force against individuals and falsely arresting and maliciously prosecuting innocent citizens to justify said use of force. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of Plaintiff ANDREW DEAN's rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, the Defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein. There are many instances of NYPD officers committing these constitutional violations prior to Mr. Dean's arrest. An example of Defendant Police Officers

use of excessive force in an unrelated matter is exhibited in the attached video link attached:

<https://share.newsbreak.com/90nmk4kc>.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff ANDREW DEAN.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff ANDREW DEAN as alleged herein.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the Constitutional violations suffered by Plaintiff ANDREW DEAN as alleged herein.

63. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, Plaintiff ANDREW DEAN was unlawfully seized, detained, incarcerated, searched, prosecuted, and subjected to physical abuse.

64. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff ANDREW DEAN's constitutional rights.

65. All of the foregoing acts by defendants deprived Plaintiff ANDREW DEAN of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from excessive force;
- C. To be free from malicious prosecution;
- D. To receive a fair trial; and

E. To be free from the failure to intervene.

66. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

67. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 66, inclusive, as if fully set forth herein.

68. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

69. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

70. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

71. Plaintiff has complied with all conditions precedent to maintaining the instant action.

72. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

73. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants owed the Plaintiff a non-delegable duty of care.

74. Pursuant to CPLR Section 1602(7), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard of the safety of others.

75. Pursuant to CPLR Section 1602(2)(iv), the Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said Defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the Plaintiff's damages.

76. Pursuant to CPLR Section 1602(11), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of Plaintiff's injuries.

AS AND FOR AN NINTH CAUSE OF ACTION
Assault under the laws of the State of New York

77. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 76, inclusive, as if fully set forth herein.

78. As a result of the foregoing, Plaintiff ANDREW DEAN was placed in apprehension of imminent harmful and offensive bodily contact.

79. As a result of Defendant's conduct, Plaintiff ANDREW DEAN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

80. The individually named Defendants assaulted Plaintiff. Defendant City, as

employer of the each of the individually named defendant officers, is responsible for said officers' wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
Battery under the laws of the State of New York

82. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 81, inclusive, as if fully set forth herein.

83. Defendants made offensive contact with Plaintiff ANDREW DEAN without privilege or consent.

84. As a result of Defendants' conduct, Plaintiff ANDREW DEAN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

85. The individually named Defendants battered Plaintiffs. Defendant City, as employer of the each of the individually named Defendant officers, is responsible for said officers' wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
Malicious Prosecution under the laws of the State of New York

87. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 86, inclusive, as if fully set forth herein.

88. The Defendant officers initiated, commenced and continued a malicious prosecution against Plaintiff ANDREW DEAN.

89. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. Defendants caused Plaintiff ANDREW DEAN to be prosecuted without probable cause until the charges were dismissed on or about August 12, 2024.

91. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN TWELFTH CAUSE OF ACTION
Negligent Screening, Hiring, and Retention under the laws of the State of New York against Defendant City of New York

92. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 91, inclusive, as if fully set forth herein.

93. Upon information and belief, Defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid Defendants who assaulted and battered and manufactured evidence against Plaintiff ANDREW DEAN.

94. Defendant CITY OF NEW YORK knew or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

95. Despite Defendant P.O. DUSTIN DIAZ's prior history of physical force and substantiated complaint of violation of NYPD rules, where he was issued Command Discipline A for use of excessive physical force, he was nonetheless retained by the CITY OF NEW YORK as a member of the NYPD.

96. Defendant P.O. MARK WHIRL has a penchant for abuse authority as there has been a multitude of complaints filed with the CCRB against Officer Whirl within the past 18 years outlining a history of violation of NYPD rules. Additionally, Officer Whirl has been named in at least seven lawsuit that resulted in the City of New York payout of thousands of dollars and to date is still retained by the CITY OF NEW YORK as a member of the NYPD and recently awarded a promotion to Detective under new Badge #3696.

97. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
Negligent Training and Supervision under the laws of the State of New York against Defendant
City of New York

98. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 97, inclusive, as if fully set forth herein.

99. Upon information and belief the Defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who assaulted and battered Plaintiff, maliciously prosecuted Plaintiff, and who deprived Plaintiff of his right to a fair trial.

100. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

N.Y.C. Administrative Code §§ 8-801 through 8-807

101. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 100, inclusive, as if fully set forth herein.

102. Plaintiff ANDREW DEAN's rights to be free from excessive force, false arrest, denial of his right to fair trial, and malicious prosecution were violated by the conduct of the Defendants which was in violation of New York City Administrative Code § 8-801 through 8-807.

103. The City of New York is liable as the employer of the Defendants under New York City Administrative Code § 8-803(b).

104. Qualified immunity is no defense to this claim.

105. As a result of the foregoing, Plaintiff ANDREW DEAN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

JURY DEMAND

106. Plaintiff demands a trial by jury on all issues of fact and damages.

WHEREFORE, Plaintiff ANDREW DEAN demands judgment and prays for the following relief, jointly and severally, against the Defendants:

(A) full and fair compensatory damages in an amount to be determined by a jury;

- (B) punitive damages against the individual Defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
October 4, 2024

Yours etc.,

THE COCHRAN FIRM
Attorneys for the Plaintiff



DEREK S. SELLS
55 Broadway, 23rd Floor
New York, NY 10006
(212) 553-9215
dsells@cochranfirmny.com

ATTORNEY'S VERIFICATION

DEREK S. SELLS, an attorney duly admitted to practice in the Courts of this State, affirms the following under the penalties of perjury:

I am the Chairman of THE COCHRAN FIRM, attorneys for the plaintiffs in the above action. I have read the foregoing **COMPLAINT** and know the contents thereof. Upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by me and not by the plaintiff, is that the plaintiff reside in a County other than the one in which their attorneys maintain their offices.

The source of my information and the grounds for my beliefs are communications, papers, reports and investigations contained in the litigation file.

Dated: New York, New York
October 4, 2024



DEREK S. SELLS